

1 ENGROSSED SENATE
2 BILL NO. 1810

By: Weaver of the Senate

3 and

4 West (Tammy) of the House

5
6 An Act relating to human trafficking; amending 21
7 O.S. 2021, Section 748, as last amended by Section
8 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
9 Section 748), which relates to human trafficking;
10 requiring admissibility of certain expert testimony;
11 amending 74 O.S. 2021, Sections 18p-1, as amended by
12 Section 2, Chapter 453, O.S.L. 2024, 18p-3, 18p-4,
13 18p-5, 18p-6, 18p-7, and 18p-8 (74 O.S. Supp. 2025,
14 Section 18p-1), which relate to domestic violence and
15 sexual assault programs and services; modifying
16 definition; authorizing Attorney General to enter
17 into agreements for services for victims of human
18 trafficking; providing for confidentiality of certain
19 information; authorizing human trafficking shelters
20 to provide certain services; expanding certain
21 telephone communication service to victims of human
22 trafficking; requiring Attorney General to promulgate
23 rules for certification of human trafficking programs
24 and services; requiring certification of certain
shelters and programs by the Attorney General;
authorizing Attorney General or district attorney to
bring certain actions; authorizing Attorney General
to collect certain information; updating statutory
language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 748, as last
amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
Section 748), is amended to read as follows:

1 Section 748. A. As used in ~~Sections 748~~ this section and
2 Section 748.2 of this title:

3 1. "Coercion" means compelling, forcing, or intimidating a
4 person to act by:

- 5 a. threats of harm or physical restraint against any
6 person,
- 7 b. any act, scheme, plan, or pattern intended to cause a
8 person to believe that performing, or failing to
9 perform, an act would result in serious physical,
10 financial, or emotional harm or distress to or
11 physical restraint against any person,
- 12 c. the abuse or threatened abuse of the law or legal
13 process,
- 14 d. knowingly destroying, concealing, removing,
15 confiscating, or possessing any actual or purported
16 passport, labor or immigration document, or other
17 government identification document, including, but not
18 limited to, a driver license or birth certificate, of
19 another person,
- 20 e. facilitating or controlling a person's access to any
21 addictive or controlled substance other than for legal
22 medical purposes,
- 23 f. blackmail,

- 1 g. demanding or claiming money, goods, or any other thing
2 of value from or on behalf of a prostituted person
3 where such demand or claim arises from or is directly
4 related to the act of prostitution,
- 5 h. determining, dictating, or setting the times at which
6 another person will be available to engage in an act
7 of prostitution with a third party,
- 8 i. determining, dictating, or setting the places at which
9 another person will be available for solicitation of,
10 or to engage in, an act of prostitution with a third
11 party, or
- 12 j. determining, dictating, or setting the places at which
13 another person will reside for purposes of making such
14 person available to engage in an act of prostitution
15 with a third party;

16 2. "Commercial sex" means any form of commercial sexual
17 activity such as sexually explicit performances, prostitution,
18 participation in the production of pornography, performance in a
19 strip club, or exotic dancing or display;

20 3. "Debt bondage" means the status or condition of a debtor
21 arising from a pledge by the debtor of his or her personal services
22 or of those of a person under his or her control as a security for
23 debt if the value of those services as reasonably assessed is not
24

1 applied toward the liquidation of the debt or the length and nature
2 of those services are not respectively limited and defined;

3 4. "Human trafficking" means modern-day slavery that includes,
4 but is not limited to, extreme exploitation and the denial of
5 freedom or liberty of an individual for purposes of deriving benefit
6 from that individual's commercial sex act or labor;

7 5. "Human trafficking for labor" means:

8 a. recruiting, enticing, harboring, maintaining,
9 transporting, providing, or obtaining, by any means,
10 another person through deception, force, fraud,
11 threat, or coercion or for purposes of engaging the
12 person in labor, or

13 b. benefiting, financially or by receiving anything of
14 value, from participation in a venture that has
15 engaged in an act of trafficking for labor;

16 6. "Human trafficking for commercial sex" means:

17 a. recruiting, enticing, harboring, maintaining,
18 transporting, providing, or obtaining, by any means,
19 another person through deception, force, fraud,
20 threat, or coercion for purposes of engaging the
21 person in a commercial sex act,

22 b. recruiting, enticing, harboring, maintaining,
23 transporting, providing, purchasing, or obtaining, by
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1 any means, a minor for purposes of engaging the minor
2 in a commercial sex act, or

3 c. benefiting, financially or by receiving anything of
4 value, from participating in a venture that has
5 engaged in an act of trafficking for commercial sex;

6 7. "Legal process" means the criminal law, the civil law, or
7 the regulatory system of the federal government, any state,
8 territory, district, commonwealth, or trust territory therein, and
9 any foreign government or subdivision thereof and includes legal
10 civil actions, criminal actions, and regulatory petitions or
11 applications;

12 8. "Minor" means an individual under eighteen (18) years of
13 age; and

14 9. "Victim" means a person against whom a violation of any
15 provision of this section has been committed.

16 B. It shall be unlawful to knowingly engage in human
17 trafficking.

18 C. Any person violating the provisions of this section shall,
19 upon conviction, be guilty of a Class A2 felony offense punishable
20 by a fine not more than One Hundred Thousand Dollars (\$100,000.00),
21 by imprisonment in the custody of the Department of Corrections for
22 a term ~~of~~ not less than five (5) years or for life, ~~or by a fine of~~
23 ~~not more than One Hundred Thousand Dollars (\$100,000.00),~~ or by both
24 such fine and imprisonment. Any person violating the provisions of

1 this section where the victim of the offense is under eighteen (18)
2 years of age at the time of the offense shall, upon conviction, be
3 guilty of a Class A2 felony offense punishable by a fine not more
4 than Two Hundred Fifty Thousand Dollars (\$250,000.00), by
5 imprisonment in the custody of the Department of Corrections for a
6 term ~~of~~ not less than fifteen (15) years or for life, ~~or by a fine~~
7 ~~of not more than Two Hundred Fifty Thousand Dollars (\$250,000.00),~~
8 or by both such fine and imprisonment. The court shall also order
9 the defendant to pay restitution to the victim as provided in
10 Section 991f of Title 22 of the Oklahoma Statutes. If the person is
11 convicted of human trafficking, the person shall serve eighty-five
12 percent (85%) of the sentence before being eligible for parole
13 consideration or any earned credits. The terms of imprisonment
14 specified in this subsection shall not be subject to statutory
15 provisions for suspension, deferral, or probation, or state
16 correctional institution earned credits accruing from and after
17 November 1, 1989, except for the achievement earned credits
18 authorized by subsection H of Section 138 of Title 57 of the
19 Oklahoma Statutes. To qualify for such achievement earned credits,
20 such inmates must also be in compliance with the standards for Class
21 level 2 behavior, as defined in subsection D of Section 138 of Title
22 57 of the Oklahoma Statutes.

23 D. It is an affirmative defense to prosecution for a criminal,
24 youthful offender, or delinquent offense that, during the time of

1 the alleged commission of the offense, the defendant or alleged
2 youthful offender or delinquent was a victim of human trafficking.

3 E. The consent of a victim to the activity prohibited by this
4 section shall not constitute a defense.

5 F. Lack of knowledge of the age of the victim shall not
6 constitute a defense to the activity prohibited by this section with
7 respect to human trafficking of a minor.

8 G. In an action in a court of this state, if a party offers
9 evidence of human trafficking, testimony of an expert witness
10 including, but not limited to, the effect of such human trafficking
11 on the beliefs, behavior, and perception of the person being
12 trafficked shall be admissible as evidence.

13 SECTION 2. AMENDATORY 74 O.S. 2021, Section 18p-1, as
14 amended by Section 2, Chapter 453, O.S.L. 2024 (74 O.S. Supp. 2025,
15 Section 18p-1), is amended to read as follows:

16 Section 18p-1. A. There is hereby created within the Office of
17 the Attorney General a Victims Services Unit.

18 B. The duty of the ~~Unit~~ unit is to provide services for persons
19 who require domestic violence, human trafficking, or sexual assault
20 services through a domestic violence, human trafficking, or sexual
21 assault program.

22 C. As used in this act, "domestic violence program", "human
23 trafficking program", or "sexual assault program" means an agency,
24 organization, facility, or person that offers, provides or engages

1 in the offering of any shelter, residential services or support
2 services to:

3 1. Victims or survivors of domestic abuse as defined in Section
4 60.1 of Title 22 of the Oklahoma Statutes, any dependent children of
5 such victim or survivor, and any other member of the family or
6 household of such victim or survivor;

7 2. Victims or survivors of sexual assault;

8 3. Persons who are homeless as a result of domestic abuse or
9 sexual assault or both domestic abuse and sexual assault; ~~and~~

10 4. Victims of stalking; and

11 5. Victims of human trafficking,

12 and which may provide other services including, but not limited to,
13 counseling, case management, referrals or other similar services to
14 victims or survivors of domestic abuse, sexual assault, human
15 trafficking, or stalking.

16 D. As used in this act, "batterers intervention program" or
17 "batterers treatment program" means an agency, organization,
18 facility, or person who offers, provides or engages in the offering
19 of counseling or intervention services to persons who commit
20 domestic abuse.

21 E. For any county in which there is more than one sexual
22 assault program, domestic violence program, human trafficking
23 program, or batterers intervention program and one or more of the
24 programs operates a shelter program, only the program or programs

operating a shelter program shall receive grants or funding from the Victim Services Unit collected pursuant to subsection F of Section 153 of Title 28 of the Oklahoma Statutes and Section 2368.22 of Title 68 of the Oklahoma Statutes.

SECTION 3. AMENDATORY 74 O.S. 2021, Section 18p-3, is amended to read as follows:

Section 18p-3. A. The Attorney General is hereby authorized and directed to enter into agreements and to contract for the shelter and other services that are needed for victims of domestic abuse, sexual assault, human trafficking, or batterers intervention programs. Any domestic violence, sexual assault, human trafficking, or batterers intervention program providing services pursuant to certification by the Attorney General or a contract or subcontract with the Attorney General and receiving funds from the Attorney General or any contractor with the Attorney General shall be subject to the provisions of the administrative rules of the Attorney General.

B. 1. Except as otherwise provided by paragraph 3 of this subsection, the case records, case files, case notes, client records, or similar records of a domestic violence, human trafficking, or sexual assault program certified by the Attorney General or of any employee or trained volunteer of a program regarding an individual who is residing or has resided in such program or who has otherwise utilized or is utilizing the services

1 of any domestic violence or sexual assault program or counselor
2 shall be confidential and shall not be disclosed.

3 2. For purposes of this subsection, the term "client records"
4 shall include, but not be limited to, all communications, records,
5 and information regarding clients of domestic violence and sexual
6 assault programs.

7 3. The case records, case files, or case notes of programs
8 specified in paragraph 1 of this subsection shall be confidential
9 and shall not be disclosed except with the written consent of the
10 individual, or in the case of the individual's death or disability,
11 of the individual's personal representative or other person
12 authorized to sue on the individual's behalf or by court order for
13 good cause shown by the judge in camera.

14 C. The district court shall not order the disclosure of the
15 address of a domestic violence shelter, the location of any person
16 seeking or receiving services from a domestic violence or sexual
17 assault program, or any other information which is required to be
18 kept confidential pursuant to subsection B of this section.

19 D. The home address, personal telephone numbers and social
20 security number of board members, staff and volunteers of certified
21 domestic violence and sexual assault programs shall not be construed
22 to be open records pursuant to the Oklahoma Open Records Act.

23 SECTION 4. AMENDATORY 74 O.S. 2021, Section 18p-4, is
24 amended to read as follows:

1 Section 18p-4. A. As used in this section, "minor mother"
2 means an unemancipated female under ~~the age of~~ eighteen (18) years
3 of age who is pregnant or the biological parent of any child.

4 B. A domestic violence or human trafficking shelter facility
5 may provide shelter and care to a minor mother, who is the victim of
6 domestic abuse or human trafficking or is seeking relief from
7 domestic abuse for herself or on behalf of any of her children or
8 both herself and any of her children.

9 C. A domestic violence or human trafficking shelter facility
10 may provide shelter or care only during an emergency constituting an
11 immediate danger to the physical health or safety of the minor
12 mother or her child or both the minor mother and any of her
13 children. Such shelter or care shall not extend beyond thirty (30)
14 days unless the facility receives an order issued by the court to
15 continue such services or the parent or guardian of the minor mother
16 consents to such services.

17 D. The provisions of Section 856 of Title 21 of the Oklahoma
18 Statutes shall not apply to any domestic violence or human
19 trafficking shelter facility and any person operating such facility
20 who in good faith is providing shelter and care pursuant to the
21 provisions of this section to a minor mother and any of her children
22 who is a runaway from her parent or legal guardian.

23 E. The emergency custody hearing provided for in Section 1-4-
24 202 of Title 10A of the Oklahoma Statutes shall be provided for a

1 minor mother who is seeking relief from domestic abuse for herself
2 or on behalf of any of the her children.

3 SECTION 5. AMENDATORY 74 O.S. 2021, Section 18p-5, is
4 amended to read as follows:

5 Section 18p-5. The Office of the Attorney General shall be
6 responsible for the development, maintenance and operation of a
7 twenty-four-hour statewide telephone communication service for the
8 victims of rape, forcible sodomy, human trafficking, and domestic
9 violence. The purpose of the service is to provide information to
10 such victim regarding any immediate action which should be taken by
11 the victim, the social services available, and the legal rights and
12 remedies of the victim.

13 SECTION 6. AMENDATORY 74 O.S. 2021, Section 18p-6, is
14 amended to read as follows:

15 Section 18p-6. A. Effective July 1, 2005, all administrative
16 rules promulgated by the Department of Mental Health and Substance
17 Abuse Services relating to domestic violence and sexual assault
18 programs shall be transferred to and become a part of the
19 administrative rules of the Office of the Attorney General. The
20 Office of Administrative Rules in the Secretary of State's office
21 shall provide adequate notice in the Oklahoma Register of the
22 transfer of such rules, and shall place the transferred rules under
23 the Oklahoma Administrative Code section of the Attorney General.
24 Such rules shall continue in force and effect as rules of the Office

1 of the Attorney General from and after July 1, 2005, and any
2 amendment, repeal or addition to the transferred rules shall be
3 under the jurisdiction of the Attorney General.

4 B. The Attorney General shall adopt and promulgate rules and
5 standards for certification of batterers intervention, human
6 trafficking, and domestic violence programs and for private
7 facilities and organizations which offer domestic violence, human
8 trafficking, and sexual assault services in this state. These
9 facilities shall be known as "certified domestic violence shelters"
10 ~~or~~, "certified domestic violence programs" ~~or~~, "certified sexual
11 assault programs" ~~or~~, "certified treatment programs for batterers",
12 "certified human trafficking shelters", or "certified human
13 trafficking programs", as applicable.

14 C. Applications for certification as a certified domestic
15 violence shelter, domestic violence program, human trafficking
16 shelter, human trafficking program, sexual assault program or
17 treatment program for batterers, pursuant to the provisions of this
18 section, shall be made to the Office of the Attorney General on
19 prescribed forms. The Attorney General may certify the shelter or
20 program for a period of three (3) years subject to renewal as
21 provided in the rules promulgated by the Attorney General. Nothing
22 in this section shall preclude the Office of the Attorney General
23 from making inspection visits to a shelter or program to determine
24 contract or program compliance.

1 D. Licensed physicians, licensed psychologists, licensed social
2 workers, individual members of the clergy, licensed marital and
3 family therapists, licensed behavioral practitioners, and licensed
4 professional counselors shall be exempt from certification
5 requirements; provided, however, these exemptions shall only apply
6 to individual professional persons in private practice and not to
7 any domestic violence program or sexual assault program operated by
8 such person.

9 E. Facilities providing services for persons who commit
10 domestic abuse, victims or survivors of domestic abuse or sexual
11 assault, victims or survivors of human trafficking, and any
12 dependent children of such victims or survivors shall comply with
13 standards promulgated by the Attorney General; provided, that the
14 certification requirements and standards promulgated by the Attorney
15 General shall not apply to programs and services offered by the
16 State Department of Health, the Department of Mental Health and
17 Substance Abuse Services, the Department of Corrections, or the
18 Department of Human Services. The batterers intervention, domestic
19 violence, human trafficking, or sexual assault programs certified
20 pursuant to the provisions of this section shall cooperate with
21 inspection personnel of this state and shall promptly file all
22 reports required by the Attorney General. Failure to comply with
23 rules and standards of the Attorney General shall be grounds for
24 revocation of certification, after proper notice and hearing.

1 F. The Attorney General is hereby authorized to collect from
2 each applicant the sum of One Hundred Fifty Dollars (\$150.00) to
3 help defray the costs incurred in the certification process.

4 SECTION 7. AMENDATORY 74 O.S. 2021, Section 18p-7, is
5 amended to read as follows:

6 Section 18p-7. A. The Attorney General or any district
7 attorney, in such person's discretion, may bring an action for an
8 injunction against any batterers intervention, domestic violence
9 program, human trafficking program, or sexual assault program found
10 to be in violation of the provisions of this title or of any order
11 or determination of the Attorney General.

12 B. In any action for an injunction brought pursuant to this
13 section, any findings of the Attorney General or district attorney,
14 after hearing and due notice, shall be prima facie evidence of the
15 facts found therein.

16 SECTION 8. AMENDATORY 74 O.S. 2021, Section 18p-8, is
17 amended to read as follows:

18 Section 18p-8. A. The Office of the Attorney General shall
19 have the authority to collect information sufficient to meet its
20 responsibilities related to oversight, management, evaluation,
21 performance improvement and auditing of domestic violence, human
22 trafficking, and sexual assault services and combating and
23 preventing domestic violence and sexual assault in this state.
24

B. The individual forms, computer and electronic data, and other forms of information collected by and furnished to the Attorney General shall be confidential and shall not be public records as defined in the Oklahoma Open Records Act.

C. Except as otherwise provided by state and federal confidentiality laws, identifying information shall not be disclosed and shall not be used for any public purpose other than the creation and maintenance of anonymous datasets for statistical reporting and data analysis.

SECTION 9. This act shall become effective in accordance with the provisions of Section 58 of Article V of the Oklahoma Constitution.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives